

Salman @ Mohd. Salman v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 October 2018 · Writ - C No. 35827 of 2018 · Writ - C No. 35827 of 2018 · **Writ disposed; liberty to apply under clause 6.14; coercive recovery stayed pending that decision.**

HEADNOTE

The High Court will not itself fix instalments of electricity arrears. A consumer facing a recovery citation who offers to pay in instalments must apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ was disposed with liberty to move that application within one week; the Executive Engineer to decide it in accordance with law within one month; coercive steps on the citation stayed till then.

FACTUAL SUMMARY

The petitioner, Salman alias Mohd. Salman, filed a writ seeking quashing of a recovery citation dated 14 September 2018 for Rs. 6,15,318 towards electricity dues. He stated that he was willing to deposit the amount if the High Court fixed instalments. The respondents included the State of Uttar Pradesh and the Executive Engineer, Pashchimanchal Vidyut Vitaran Nigam Ltd., Deoband, District Saharanpur. Counsel for the petitioner, the licensee, and the State were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity arrears

HOLDING

It is not the business of the High Court to fix instalments of electricity dues, that being a matter between the consumer and the licensee. The consumer may apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005 with an offer to pay the entire amount in instalments; if the application is moved within one week, the Executive Engineer shall decide it in accordance with law within one month, and coercive recovery on the citation shall remain stayed till that order. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The High Court will not itself fix instalments of electricity arrears. A consumer facing a recovery citation who offers to pay in instalments must apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 14.09.2018 WAS LIABLE TO BE QUASHED ON THE MERITS

The Court declined to fix instalments itself and did not examine the validity or quantum of the dues. ¶ 1